

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1942

By: Thompson, Gillespie,
Grellner, Daniels, and
McIntosh of the Senate

6
7 and

8 Moore of the House
9

10 An Act relating to dental insurance claims; amending
11 36 O.S. 2021, Section 7301, which relates to dental
12 plan fee regulation; modifying definition; and
13 providing an effective date.

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15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 36 O.S. 2021, Section 7301, is
17 amended to read as follows:

18 Section 7301. A. No contract between a dental plan of a health
19 benefit plan and a dentist for the provision of services to patients
20 may require that a dentist provide services to its subscribers at a
21 fee set by the health benefit plan unless the services are covered
22 services under the applicable subscriber agreement.

23 B. As used in this section:
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1 1. "Covered services" means services ~~reimbursable~~ reimbursed
2 under the applicable subscriber agreement, ~~subject~~ notwithstanding
3 and without regard to the contractual limitations on subscriber
4 benefits ~~as may apply, including, for example, deductibles, waiting~~
5 ~~period or frequency limitations;~~

6 2. "Dental plan" means and shall include any policy of
7 insurance which is issued by a health benefit plan which provides
8 for coverage of dental services not in connection with a medical
9 plan; and

10 3. "Health benefit plan" means any plan or arrangement as
11 defined in subsection C of Section 6060.4 of this title or any
12 dental service corporation authorized pursuant to Section 2671 of
13 this title.

14 C. A health benefit plan or dental plan shall establish and
15 maintain appeal procedures for any claim by a dentist or a
16 subscriber that is denied based on lack of medical necessity. Any
17 such denial shall be based upon a determination by a dentist who
18 holds a nonrestricted license in the United States. Any written
19 communication to a dentist that includes or pertains to a denial of
20 benefits for all or part of a claim on the basis of a lack of
21 medical necessity shall include the identifier and license number
22 together with state of issuance, and a contact telephone number of
23 the licensed dentist making the adverse determination. The dentist
24 who reviewed the claim shall only be contacted at the telephone

1 number provided in the written communication about the denial during
2 business hours.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 04/06/2026 - DO PASS.

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